

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TRALIZE HAYNES and MALIK WILLIAMS,

Plaintiffs,

-against-

CITY OF NEW YORK, JAMES KELLY, and JOHN or
JANE DOE 1-10,

Defendants.
-----X

SUMMONS

Index No.

Purchased:

Plaintiffs Select Kings County as the
Place of Trial

Venue Based Upon Locus of Injury

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 21, 2024

SIM & DEPAOLA LLP
Attorneys-at-Law
4240 Bell Blvd – Ste 405
Bayside, NY 11361
(718) 281-0400

By: /s/ Sameer Nath
Sameer Nath, Esq.
Attorneys for Plaintiffs

TO: **CITY OF NEW YORK**

Via Corporation Counsel of The City of New York

100 Church Street

New York, New York 10007

JAMES KELLY, P.O. (Shield No. 24036 & Tax Reg. No. 964084)

Via 73rd Precinct/Detective Squad

1470 East New York Avenue

Brooklyn, New York 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TRALIZE HAYNES and MALIK WILLIAMS,

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, JAMES KELLY, and JOHN or
JANE DOE 1-10,

Defendants.

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Plaintiffs, Ms. TRALIZE HAYNES and Mr. MALIK WILLIAMS, by and through their attorneys, SIM & DEPAOLA LLP, for their complaint against Defendants, CITY OF NEW YORK, JAMES KELLY, and JOHN or JANE DOE 1-10, allege and state as follows:

1. This is a civil rights action, in which Plaintiff seeks relief *vis-à-vis* 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the City and State of New York, including but not limited to New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, in addition to the self-executing clauses or implied private causes of action within the constitution of State of New York, for the violations of his civil rights, as enumerated by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States, the New York State Constitution, in addition to the Laws of the City and State of New York.

2. The following claims arose from an incident occurring on, or about, August 31, 2021, in the vicinity of 531 Chester Street, Brooklyn, New York, whereupon the defendants, acting under color of state law, unlawfully stopped, questioned, searched, arrested, and detained Plaintiffs without just or probable cause. As a result, Plaintiffs were deprived of their liberty and suffered various physical, emotional, and psychological injuries.

3. Plaintiff, Ms. Tralize Haynes, was wrongfully detained over the course of two (2) days and caused to sustain numerous serious physical, psychological, and emotional injuries, including, but not limited to, the loss of her fetus after sustaining a miscarriage caused by the use of excessive force by defendants.

4. Plaintiff, Mr. Malik Williams, was brutally assaulted, battered, and caused to sustain myriad physical, psychological, and emotional injuries, including, but not limited to, fractured bones.

5. At all times, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

6. Under New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, the Plaintiff is not required to file his Notice of Claim or submit to an oral examination pursuant to section 50-H of the New York General Municipal Law.

7. This action and associated claims have been filed within the applicable statute of limitations, which is three years for state and federal claims.

8. The above-referenced acts caused Plaintiff to be deprived of his liberty, his right to be from unreasonable searches and seizures, in addition to his rights to Due Process and Equal Protection of the laws.

9. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, in addition to such other or further relief, as this Court may deem just and proper.

PARTIES

10. Plaintiff, Ms. Tralize Haynes ("Ms. Haynes"), is a young African American or Black female, who presently resides in Albany, New York.

11. Plaintiff, Mr. Malik Williams (“Mr. Williams”) is a young African American or Black male, who presently resides in Albany, New York.

12. Defendant, City of New York (“City”), is a municipal corporation duly organized and existing, under the laws of the State of New York.

13. At all relevant times herein, the New York City Police Department (“NYPD”) is a wholly owned subsidiary which was further wholly operated, managed, maintained, and controlled by Defendant City.

14. At all relevant times herein, Defendant City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

15. At all relevant times herein, Defendant, City, was responsible for enforcing the rules and regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the City and State of New York.

16. At all relevant times herein, Defendants JAMES KELLY (“KELLY”), was a police officer, detective, sergeant, lieutenant or other supervisory officer employed by the NYPD under Shield number 24036, and, as such, were acting as agents, servants or employees of Defendant City. Defendants are being sued in their individual and official capacities.

17. The names, JOHN or JANE DOE 1-10, are intended as fictitious placeholders for presently unidentified NYPD officers, who i) Illegally and brutally assaulted Plaintiffs; ii) Falsely arrested Plaintiff; iii) Falsely imprisoned Plaintiff; iv) Illegally searched Plaintiffs’ dwelling; v) Illegally

searched Plaintiffs' persons; vi) Violently slammed Plaintiff, Mr. Williams onto the ground; vii) Aggressively pressed their knees onto the neck and back of Plaintiff, Mr. Williams, in an excessively forceful and violent manner which caused him to sustain substantial physical pain and injuries, including contusions and loss of his overall range of movement and quality of life; viii) Violently grabbed Plaintiff's, Ms. Haynes's, braided hair extensions and wrapped them around her neck, and began choking her; ix) Placed their hands on Plaintiff's, Ms. Haynes's, neck and proceeded to choke her again; x) Violently punched and kicked Plaintiff, Ms. Haynes, throughout her entire body; xi) Violently dragged Plaintiff, Ms. Haynes, across the basement by her body parts; or who xii) Aided, abetted or otherwise acted in concert or were otherwise complicit in the violation or deprivation of Plaintiffs' civil rights on, or about, August 31, 2021, in Kings County, New York.

18. At all relevant times herein, Defendants, JOHN or JANE DOE 1-10, were police officers, detectives, supervisors, policymakers or officials employed by the NYPD. At this time, Plaintiffs do not know the true identities, names, shield or tax registry numbers of JOHN or JANE DOE 1-10, as such knowledge is believed to be within the sole possession of the defendants named herein. Defendants, JOHN or JANE DOE 1-10, are being sued in their individual and official capacities.

19. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

20. On, or about, August 31, 2021, at approximately 11:00 a.m., in the vicinity of 531 Chester Street, Brooklyn, New York, Plaintiffs were illegally targeted because of their race, religion,

gender, national origin or other improper characteristics for adverse police action by defendants, including KELLY and JOHN or JANE DOE 1-10.

21. Plaintiffs were lawfully present at aforesaid premises and were not committing any crimes and were further not engaged in criminal activities, nor was there any indicia of such, nor were defendants informed of such by any credible witnesses.

22. On, or about, August 31, 2021, Plaintiff, Ms. Haynes, was three (3) months pregnant with her unborn child when the incident occurred. As a result of the assault and battery and use of excessive force, Ms. Haynes suffered a miscarriage due to the application of excessive force by defendants, including KELLY and JOHN or JANE DOE 1-10.

23. Defendants aggressively charged towards Plaintiffs even though Plaintiffs did not present a danger to themselves or to anyone else during aforesaid date time and location.

24. Plaintiffs politely asked Defendants, including KELLY and JOHN or JANE DOE 1-10, for an arrest warrant whereby Defendants refused to provide Plaintiffs with an arrest warrant.

25. Instead, Defendants, including KELLY and JOHN or JANE DOE 1-10, flashed a piece of paper across Plaintiffs' faces and refused to allow Plaintiffs to read or examine the contents of the paper which Defendants purported as an arrest warrant.

26. Plaintiffs requested to read the piece of paper again, which Defendants still refused to permit Plaintiffs to read.

27. Plaintiffs did not see their names on the unidentified and unverified piece of paper that defendants abruptly flashed in front of their eyes, which they subsequently learned was not an arrest or search warrant, as falsely purported by defendants.

28. Defendants told Plaintiffs that they were under arrest even though Defendants did not have an arrest warrant, probable cause, or any legal authority to do so.

29. Defendants violently whipped a handcuff onto the right wrist of Plaintiff, Mr. Williams, while violently slamming him onto the ground.

30. Plaintiff, Mr. Williams, repeatedly requested to no avail that Defendants, including KELLY and JOHN or JANE DOE 1-10, loosen the handcuffs because they were causing him substantial pain and discomfort due to their excessive tightness.

31. Defendants, including KELLY and JOHN or JANE DOE 1-10, pressed their knees onto the neck and back of Plaintiff, Mr. Williams, in an excessively forceful and violent manner which caused him to sustain substantial physical pain and injuries, including contusions and loss of his overall range of movement and quality of life.

32. Defendants, including KELLY and JOHN or JANE DOE 1-10, forced the thumb of Plaintiff, Mr. Williams, onto a pad of ink and proceeded to obtain fingerprint impressions without his consent.

33. Defendants, including KELLY and JOHN or JANE DOE 1-10, caused Plaintiff, Mr. Williams, to sustain a myriad of injuries including, but limited to, a fractured right arm.

34. Defendants, including JOHN or JANE DOE 1-10, then released Plaintiff, Mr. Williams, from their custody at aforesaid location without charging him with any crime or violation of the law.

35. Defendants, including KELLY and JOHN or JANE DOE 1-10, told Plaintiff, Ms. Haynes, that she should get her identification card in the basement of vicinity.

36. While Plaintiff, Ms. Haynes, was inside of the basement, the said Defendants violently whipped a metal handcuff onto her right wrist.

37. The said Defendants violently contorted the hands of Plaintiff, Ms. Haynes, behind her back and applied metal handcuffs in an excessively tight fashion.

38. Ms. Haynes repetitively plead with Ms. Haynes to loosen the handcuffs and Defendants, including, KELLY and JOHN or JANE DOE 1-10, ignored the repeated pleas of Plaintiff, Ms. Haynes, to loosen her handcuffs.

39. Defendants, instead of removing, loosening, or adjusting the excessively tight handcuffs to applied to Plaintiff, Ms. Haynes, proceeded to sadistically and intentionally tighten and squeeze the handcuffs upon her wrists for the sole purpose of wantonly inflicting even more pain, which resulted in contusions, lacerations and the loss of sensations and overall range of movement to her wrists and hands.

40. Defendants, including KELLY and JOHN or JANE DOE 1-10, grabbed Plaintiff's, Ms. Haynes's, braided hair extensions, which were approximately thirty (30) inches long, and wrapped it around her neck and began choking her.

41. Defendants, including KELLY and JOHN or JANE DOE 1-10, placed their hands on Plaintiff's, Ms. Haynes's, neck and proceeded to choke her again.

42. Defendants, including KELLY and JOHN or JANE DOE 1-10, began violently punching and kicking Plaintiff, Ms. Haynes, throughout her entire body.

43. Defendants, including KELLY and JOHN or JANE DOE 1-10, forced Plaintiff, Ms. Haynes, to stand up by grabbing her arms.

44. Defendants, including KELLY and JOHN or JANE DOE 1-10, violently dragged Plaintiff, Ms. Haynes, across the basement by her body parts.

45. Defendants, including KELLY and JOHN or JANE DOE 1-10, arrested Plaintiff, Ms. Haynes, despite being fully aware that she had not committed any crimes or violation of the law and that defendants did not possess probable cause, an judicially authorized arrest warrant or any legal authority to do so.

46. Defendants, including KELLY and JOHN or JANE DOE 1-10, illegally questioned and interrogated Plaintiffs in absence of requested counsel in violation of their civil rights, pursuant to *Miranda v. Arizona*, 384 U.S. 436 (1966).

47. Defendants, including KELLY and JOHN or JANE DOE 1-10, transported Plaintiff, Ms. Haynes, against her will to the 73rd Precinct, where she was subjected to invasive and intrusive procedures, including the recording of her retina, fingerprints, and photographs.

48. Plaintiff, Ms. Haynes, repetitively requested medical attention from Defendants, including KELLY and JOHN or JANE DOE 1-10, but her requests were denied.

49. Further, Defendants falsely and deceptively advised Plaintiff, Ms. Haynes, that she would interminably be incarcerated if her requests for medical attention or treatment persisted.

50. Defendants subsequently removed Ms. Haynes to Kings County Central Bookings where she was unlawfully detained for approximately two (2) days.

51. Ms. Haynes began experiencing vaginal bleeding and cramping upon her release from Central Bookings.

52. Plaintiffs necessitated immediate medical attention due to injuries caused by Defendants, including KELLY and JOHN or JANE DOE 1-10.

53. Plaintiff, Mr. Williams, was forced to be admitted to Albany Medical Center due to serious physical injuries caused by Defendants, including KELLY and JOHN or JANE DOE 1-10, which included, but were not limited to, fractured bones and contusions.

54. As a result of the said Defendants' assaults, Plaintiff, Mr. Williams, necessitated a cast which caused him tremendous inconvenience and physical pain.

55. The aforesaid assaults caused Plaintiff, Ms. Haynes, to sustain serious and/or permanent physical injuries to her legs, feet, face, and abdomen.

56. Defendants also caused Plaintiff, Ms. Haynes, to suffer a miscarriage, thereby terminating her pregnancy against her wishes.

57. On, or about March 8, 2022, Plaintiff, Ms. Haynes, was then unceremoniously presented with incredibly unappealing options-plead guilty to a significantly lesser charge which she did not commit, with no additional need to return to defend her innocence while being provided an opportunity to psychologically recover from injuries caused by Defendants' barbaric assaults or continue to defend her innocence *vis-à-vis* an indeterminable amount of mandatory return appearances to the scene of her torment.

58. The aforesaid assaults caused Plaintiff, Mr. Williams, to sustain serious or permanent physical injuries to his back, left shoulder and ribs and a fracture to his right arm.

59. Defendants arrested and fingerprinted Plaintiff, Mr. Williams, despite being fully aware that Mr. Williams had not committed any crimes or violation of the law and that there was no probable cause to arrest Mr. Williams.

60. Defendants, including KELLY JOHN or JANE DOE 1-10, arrested Plaintiff, Ms. Haynes, despite being fully aware that she had not committed any crimes or violation of the law and that there was no probable cause to arrest her.

61. Due to the lack of probable cause, utter lack of reasonable belief to believe that Plaintiffs posed a danger to themselves or to anyone else, for the searches or seizures of Plaintiffs' persons or properties, the aforementioned conduct constituted the completed torts of assault, battery by defendants, including KELLY and JOHN or JANE DOE 1-10.

62. Defendants, including KELLY and JOHN or JANE DOE 1-10, illegally seized and searched Plaintiffs' persons and personal property despite the fact that they had no indication,

reasonable suspicion or probable cause that Plaintiffs had committed any crimes or violations of the law.

63. Plaintiff, Ms. Haynes, asserts that Defendants arrested and detained her with the full knowledge that she committed no crimes or violations of the law.

64. Defendants, including, KELLY JOHN or JANE DOE 1-10, arrested and caused Plaintiffs to be falsely arrested, because of their desires to use Plaintiffs' arrest and false imprisonment to incur additional overtime compensation, benefits, and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

65. Defendants, including KELLY JOHN or JANE DOE 1-10, arrested, applied excessive force against Ms. Haynes in retaliation for the exertion of her Constitutional right to freely express her opinion and inquiries, namely Plaintiff's displeasure with the manner in which Defendants addressed her, and her request for an explanation as to why Defendants acted so discourteously toward Plaintiffs.

66. Defendants, including KELLY JOHN or JANE DOE 1-10, arrested, applied excessive force against Plaintiffs' exertion of their constitutional right to freely express their opinion and inquiries, namely Plaintiffs' displeasure with the manner in which Defendants addressed them, their refusal to be questioned without counsel and their requests for an explanation as to why Defendants acted so discourteously toward Plaintiffs.

67. Defendants, including KELLY JOHN or JANE DOE 1-10, subjected Ms. Haynes to disparate treatment compared to other individuals similarly situated, because defendants do not

brutally batter non-minorities who exercise their constitutional right to freely express their inquiries, namely choking non-minority women with their hair extensions.

68. Defendants, including KELLY JOHN or JANE DOE 1-10, subjected Mr. Williams to disparate treatment compared to other individuals similarly situated, because defendants do not brutally batter and forcefully fingerprint non-minorities who are not formally charged, processed in an NYPD precinct, nor do Defendants brutally assault or batter non minorities under similar circumstances.

69. Plaintiff, Mr. Williams, asserts that Defendants arrested and detained Mr. Williams with the full knowledge that Mr. Williams committed no crimes or violations of the law.

70. Plaintiff, Mr. Williams, therefore, asserts that due to the clear absence of any viable probable cause to warrant his detention of prosecution, at any point, he was unlawfully detained and falsely arrested from the moment he was seized by defendants, up to, and until the prosecutors declined to initiate a prosecution against him.

71. Defendants utterly demoralized Plaintiffs in the course of committing the aforementioned unlawful and unconstitutional assaults, arrests, and prosecution against Plaintiffs, which has rendered Plaintiffs permanently alarmed and psychologically distressed.

72. As a result of aforesaid acts, Plaintiffs are not secured of their constitutional rights. This has effectively rendered Plaintiffs permanently shocked psychologically distress.

73. Plaintiffs assert that the Defendants, including KELLY JOHN or JANE DOE 1-10, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence

that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

74. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

75. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

76. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemin throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity.

Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City or the NYPD, which were commenced by its own employee officers.

77. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

78. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled "Ex-Cop Details NYPD 'Collar Quotas'—Arrest Black and Hispanic Men, 'No Cuffs on Soft Targets' of Jews, Asians, Whites: Court Docs."

79. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled "I Got Tired of Hunting Black and Hispanic People," which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

80. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr.

Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

81. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

82. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through

contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

83. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

84. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

85. Upon information and belief, the NYPD, the City of New York, or their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies,

customs, or patterns and practices within the NYPD that resulted in Plaintiffs' arrests without probable cause.

86. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

87. Defendants' actions, pursuant to Plaintiffs' underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiffs' civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD or City of New York.

88. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

89. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

90. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including KELLY and JOHN or JANE DOE 1-10.

91. Upon information and belief, the NYPD and City of New York have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

92. The aforementioned acts of Defendants, including KELLY and JOHN or JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

93. As a direct or proximate result of said acts, Plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

94. The above paragraphs are here incorporated by reference as though fully set forth herein.

95. Plaintiffs engaged in speech and activities protected by Art. I, § 8, of the New York Constitution.

96. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

97. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of their liberty and the initiation of criminal charges against Plaintiffs.

98. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities or by chilling her desire to further participate or engage in such protected speech or activities.

99. Accordingly, Plaintiffs' right to engage in protected speech and activities, guaranteed and protected by Art. I, § 8, of the New York Constitution, was violated by Defendants.

100. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

101. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth herein.

103. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

104. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

105. Defendants' retaliatory actions against Plaintiffs resulted in the deprivation of his liberty and the initiation of criminal charges against her.

106. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities, or by chilling her desire to further participate or engage in such protected speech or activities.

107. Accordingly, Plaintiffs' right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

108. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unreasonable Search & Seizure Under
New York State Law

109. The above paragraphs are here incorporated by reference as though fully set forth herein.

110. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

111. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

112. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

113. The unreasonable searches and seizures to Plaintiffs' persons and property were not otherwise privileged.

114. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to Article I, § 12, of the New York Constitution and Article II, § 8, of the New York Civil Rights Law.

115. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

116. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unreasonable Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual Defendants

117. The above paragraphs are here incorporated by reference as though fully set forth herein.

118. Defendants subjected Plaintiffs persons and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

119. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures of their persons and property.

120. Plaintiffs did not consent to the unreasonable searches and seizures of their persons or property.

121. The unreasonable searches and seizures to Plaintiffs' persons and property were not otherwise privileged.

122. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

123. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

124. The above paragraphs are here incorporated by reference as though fully set forth herein.

125. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

126. Plaintiffs were conscious of their confinement.

127. Plaintiffs did not consent to their confinement.

128. Plaintiffs' arrests and false imprisonments were not otherwise privileged.

129. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

130. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

131. The above paragraphs are here incorporated by reference as though fully set forth herein.

132. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining, and imprisoning Plaintiffs.

133. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

134. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

135. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

136. The above paragraphs are here incorporated by reference as though fully set forth herein.

137. At all relevant times, Defendants caused Plaintiffs to fear for their physical well-being and safety and placed them in apprehension of immediate harmful or offensive touching.

138. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consent or justification.

139. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.

140. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

141. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

142. The above paragraphs are here incorporated by reference as though fully set forth herein.

143. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

144. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consent.

145. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

146. The above paragraphs are here incorporated by reference as though fully set forth herein.

147. Defendants initiated the prosecutions against Plaintiffs.

148. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions could succeed.

149. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

150. The prosecutions were terminated in favor of Plaintiffs, when all criminal charges were unconditionally dismissed and sealed, upon consideration of the merits thereof.

151. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered significant damages.

152. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

154. The above paragraphs are here incorporated by reference as though fully set forth herein.
155. Defendants initiated the prosecutions against Plaintiffs.
156. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.
157. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
158. The prosecutions were terminated in favor of Plaintiffs, when all criminal charges were unconditionally dismissed and sealed, upon consideration of the merits thereof.
159. Accordingly, Defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights.
160. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

161. The above paragraphs are here incorporated by reference as though fully set forth herein.
162. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.
163. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
164. Defendants intended to inflict substantial harm upon Plaintiffs.
165. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
166. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

167. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

168. The above paragraphs are here incorporated by reference as though fully set forth herein.

169. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiffs to compel the compliance or forbearance of some act.

170. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

171. Defendants intended to inflict substantial harm upon Plaintiffs.

172. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.

173. Defendants' actions deprived Plaintiffs of their constitutional rights to free from illegal searches and seizures and to not be deprived of liberty without Due Process in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

174. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Rights to Due Process & Fair Trial Under
New York State Law

175. The above paragraphs are here incorporated by reference as though fully set forth herein.

176. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

177. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

178. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiffs' liberty and freedom of movement.

179. Accordingly, Defendants deprived Plaintiffs of their civil rights, pursuant to Article I, §§ 1, 2, 6 and 9, of the New York Constitution, as well Article II, §§ 10 and 12, of the New York Civil Rights Law.

180. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

181. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Due Process & Fair Trial Under
42 U.S.C. § 1983 *Against* Individual Defendants

182. The above paragraphs are here incorporated by reference as though fully set forth herein.

183. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

184. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

185. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiffs' liberty and freedom of movement.

186. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Fifth, Sixth or Fourteenth Amendments to United States Constitution.

187. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

188. The above paragraphs are here incorporated by reference as though fully set forth herein.

189. Defendants impermissibly relied upon Plaintiffs' actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

190. Accordingly, Defendants violated Plaintiffs' rights, pursuant to § 14-151 of the Administrative Code of the City of New York.

191. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

192. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Law Under
New York State Law

193. The above paragraphs are here incorporated by reference as though fully set forth herein.

194. Plaintiff, Mr. Williams, as an African American or Black male, is a member of a racial minority and protected class.

195. Plaintiff, Ms. Haynes, as an African American or Black female, is a member of a racial minority and protected class.

196. Defendants discriminated against Plaintiffs based on race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

197. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

198. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

199. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

200. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

201. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

202. Accordingly, Defendants violated Plaintiffs' rights, pursuant to Article I, § 11, of the New York Constitution, Article VII, § 79-N, of the New York Civil Rights Law and § 296, ¶ 13, of the New York Human Rights Law.

203. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

204. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

205. The above paragraphs are here incorporated by reference as though fully set forth herein.

206. Plaintiffs, as young adult, African American persons, of a racial minority and protected class.

207. Defendants discriminated against Plaintiffs on the basis of her race, color or ethnicity.
208. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.
209. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of her Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
210. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
211. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
212. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
213. Accordingly, Defendants violated Plaintiffs' rights, under the Fourteenth Amendment.
214. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

215. The above paragraphs are here incorporated by reference as though fully set forth herein.
216. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of her rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of her liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.
217. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

218. As a result, Plaintiffs sustained injuries to their persons, were deprived of their liberty or rights or privileges of citizens of the United States.

219. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

220. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

221. Accordingly, Defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth or Fourteenth Amendments to the United States Constitution.

222. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

223. The above paragraphs are here incorporated by reference as though fully set forth herein.

224. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

225. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

226. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under

42 U.S.C. § 1983 *Against* Individual Defendants

227. The above paragraphs are here incorporated by reference as though fully set forth herein.

228. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

229. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

230. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Denial of Due Process/Fabrication of Evidence Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

231. The above paragraphs are here incorporated by reference as though fully set forth herein.

232. Those Defendants deliberately fabricated evidence against the Plaintiffs and that as a result of this evidence being used against them, were deprived of their constitutional right without Due Process of law.

233. As a result, Plaintiffs sustained injuries to their persons, was deprived of their liberty or were deprived of rights or privileges of citizens of the United States

234. Defendants fabricated evidence to support their false arrest, detention and prosecution of the Plaintiffs. Defendants used this fabricated evidence and informed the prosecution that the fabricated evidence was true and accurate despite the fact that knew that the fabricated evidence was not true. As a result, the Plaintiffs were deprived of their Constitutional rights.

235. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION**Negligent Hiring, Training, Retention & Supervision Under
New York State Law**

236. The above paragraphs are here incorporated by reference as though fully set forth.

237. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

238. Defendant City breached those duties of care.

239. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

240. Defendant City knew or reasonably should have known of its employees' propensity for committing civil rights violations.

241. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiffs.

242. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION**Violation of Victims of Violent Crime Protection Act Under
New York City Law**

243. The above paragraphs are here incorporated by reference as though fully set forth herein.

244. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiffs, as defined in state or federal law which presented a serious risk of physical injury to Plaintiffs, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

245. Accordingly, Defendants committed a crime of violence against Plaintiffs and violated Plaintiffs' rights, pursuant to § 10-403 of the Administrative Code of the City of New York.

246. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

247. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FOURTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 *Against* Defendant City

248. The above paragraphs are here incorporated by reference as though fully set forth.

249. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

250. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

251. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with Defendant City’s employees.

252. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiffs’ Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City’s employees.

253. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

254. Defendant City's conduct caused Plaintiffs to be deprived of their civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth or Fourteenth Amendments thereto.

255. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- x) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- y) On the Twenty-Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- z) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- aa) Awarding Plaintiffs reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws, with all interest then accrued; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiffs hereby demand a trial by jury.

Dated: Bayside, New York
May 21, 2024

SIM & DEPAOLA, LLP
Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

By: /s/ Sameer Nath
Sameer Nath, Esq.
Attorneys for Plaintiff

ATTORNEY VERIFICATION

I, Sameer Nath, an attorney admitted to practice in the courts of New York State, state that I am an associate of the firm of **SIM & DEPAOLA LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where the deponent maintains his office. I affirm that the foregoing statements are true, under the penalty of perjury.

Dated: Bayside, New York
May 21, 2024

/s/ Sameer Nath
Sameer Nath, Esq.